NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

Date: 03.01.2023

CP (CAA) No. 57/230-232/2022 in
CA (CAA) No. 33/230-232/2022

[Section 230-232 read with Section 61 and 66 of the Companies Act, 2013]

In the matter of :

Dytint Specialities Private Limited	… Petitioner / Transferor Company
With	
Alps Chemicals private Limited	… Petitioner / Transferee Company

For Clarification

The present application was heard and reserved for the order. While perusing the records and the Chairman's Report, on the meeting of Secured Creditor of Transferor Company viz., Dytint Specialities Private Limited, it is noted that the sole secured creditor Citibank has issued a No Due Letter for approval of the Scheme. That No Due Letter of the Secured Creditor is not in a proper affidavit, along with Authority Letter, for the approval of Scheme.

Therefore, the matter is released for clarification and submission of requisite documents.

List the matter for clarification on 11.01.2023

-SD-	-SD-
KAUSHALENDRA KUMAR SINGH	**DR. MADAN B GOSAVI**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**

Sudha